

assignees should continue in office (*a*). And trustees, where they retain the title deeds, are equally required to give attested copies, and [either to] covenant for production during the period of their own custody, giving at the same time all such right at law or in equity as they lawfully can to call for the production as against the holder for the time being (*b*), [or else to give a statutory acknowledgment under the recent Act.] It is not easy to suggest a case where upon a sale by trustees the purchaser would not be entitled in equity (which would be sufficient) to call for the production of the deeds, but should there occur a case where the purchaser would not have such a right either at law or in equity, he could not be compelled to complete, but might claim to be discharged from his contract and be paid his costs, which would fall upon the trust estate or the trustees personally, according to the propriety or impropriety of their conduct in proceeding to a sale without guarding themselves by an express condition.

[56. **Statutory acknowledgment.** — Under the Conveyancing and Law of Property Act, 1881 (*c*), sect. 9, the practice has been introduced of giving an acknowledgment in writing

(*a*) *Ex parte* Stuart, 2 Rose, 215.

(*b*) See *Onslow v. Lord Londesborough*, 10 Hare, 74, Sugd. Vend. & Pur. 54, 13th edit.

The following form would, it is conceived, be a proper covenant: "The said A. B., C. D., and E. F., but so as not to render themselves, or any of them, or any of their heirs, executors, or administrators, liable under the present covenant, except so long as they or he respectively shall remain trustees or trustee, and shall as such hold or be entitled to the custody of the deeds and writings hereinafter mentioned, but so nevertheless as to bind so far as can lawfully be done, the holders for the time being of the said deeds and writings, do hereby covenant with the said G. H. that they the said A. B., C. D., and E. F., their heirs, executors, and administrators, shall and will at all times," &c.

Mr. De Morgan has been kind

enough to furnish me with the following form, settled by Lord Eldon's own hand, in a case where Lord Eldon and another were devisees in trust under a will: "Each of them the said John Earl of Eldon and E. S. Thurlow, as such devisees in trust as aforesaid, and for such period only as they or either of them, their or either of their heirs, executors, administrators, or assigns, shall have the custody or lawful power over such deeds, evidences and writings, doth hereby for himself, his heirs, executors, and administrators, covenant, promise, and agree with and to the said J. P., his heirs, appointees, and assigns, so and in such manner as to bind, so far as is practicable, all and every person and persons in whose custody the same deeds, evidences, and writings now are, or at any time hereafter shall be, that," &c.

[(*c*) 44 and 45 Vict. c. 41.]